

Tamil Nadu Mediation and Conciliation Centre, Chennai

INTRODUCTION :-



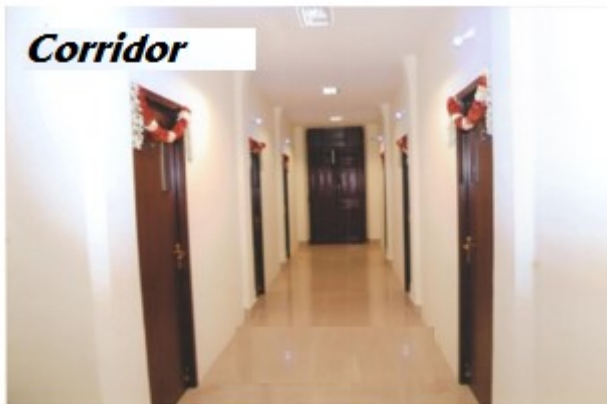
The Tamil Nadu Mediation and Conciliation Centre, India's first Court-Annexed Mediation Centre, was inaugurated on 9th April, 2005, thus marking another significant milestone in the hoary history of the Madras High Court established on 15th August, 1862. The Centre is established as per the mandate under Section 89 of the Civil Procedure Code, 1908 and functions as per the Tamil Nadu Mediation Rules, 2010, framed by the Madras High Court.

The Centre was set up by the Madras High Court under an order dated 13th March, 2005, of the then Hon'ble Chief Justice of the Madras High Court, Hon'ble Mr. Justice Markandey Katju.



Hon'ble Mr. Justice Markandey Katju

COMPOSITION:-



The Hon'ble Chief Justice of the Madras High Court is the Patron of the Centre.

The Supervising Committee of the Tamil Nadu Mediation and Conciliation Centre is as follows:

1. The Hon'ble Mr. Justice M.M.Sundresh - Chairman
2. The Hon'ble Mr. Justice D. Krishnakumar - Member
3. The Hon'ble Mr. Justice M. Govindaraj - Member
4. The Hon'ble Dr. Justice Anita Sumanth - Member
5. Mr. P. H. Arvind Pandian, Senior Advocate - Member
6. Mr. Sriram Panchu, Senior Advocate - Member
7. The Member-Secretary, Tamil Nadu State Legal Services Authority, Chennai. - Member
8. Mrs. Uma Ramanathan, - Co-ordinator

ABOUT US :



Tamil Nadu Mediation and Conciliation Centre is an initiative of the Madras High Court to enable the litigants to hold talks, collaborate and resolve their issues. The Court refers the cases to the Mediation Centre. Here, well trained, neutral third party Mediators, facilitate talks between the parties and attempt to resolve the disputes amicably. The service is provided by the Court to the litigants without any additional costs. Mediation Centre has good facilities for the litigants to wait and also to hold talks in a private and confidential manner. Mediation Centre works on all Court working days, throughout the day.

What is Mediation ?

Mediation is resolution of disputes between the parties, in which both parties communicate and negotiate directly, with the facilitation and control of a third party neutral Mediator.

Mediation is,

- ☐ WITHOUT PREJUDICE PROCESS,
- ☐ VOLUNTARY,
- ☐ CONFIDENTIAL
- ☐ INFORMAL
- ☐ SELF DETERMINATION

Which is quick, economical and future-oriented and allows creative and flexible solutions.

Why Mediation?

- ☐ An opportunity for litigants to directly negotiate and finally resolve their disputes.
- ☐ Forum to ventilate their emotions and know the opponent's perspectives on first hand.
- ☐ To supplement Courts in rendering speedy justice.
- ☐ To increase faith in Judiciary, Advocates and Justice Delivery System and make more people to approach courts for redressing their grievances.

Mediation . . . How ?

- ☐ Mediation Centres are set up in all Districts.
- ☐ Mediation Centres will have trained mediators on roll.
- ☐ Matters will be referred for mediation by the Courts.
- ☐ Mediators will be allotted to deal with the matters.
- ☐ Both parties have to appear before the Centre, upon which mediation will be conducted.
- ☐ Final outcome alone, whether settled or not, will be informed to the court.

What Mediators Do ?

- ☐ Mediators first explain the process of mediation and the benefits of settling the issue.
- ☐ Mediators establish an informal and comfortable atmosphere for the parties.
- ☐ Mediators enhance, establish and channelize direct, honest and appropriate communication between parties.
- ☐ Mediators concentrate on emotional issues, needs and future interests of the parties.
- ☐ Mediators help parties to negotiate, collaborate and find out solution.
- ☐ WIN/WIN situation emerges.

Benefits of mediation :-

- ☐ Economic benefits for both parties.
- ☐ Saves time, energy and money.
- ☐ Relieves the agony of the parties.
- ☐ Practical, collaborative and innovative solutions.
- ☐ Re-establishes relationships.
- ☐ Addresses the core conflict and final future oriented solutions to parties.
- ☐ Advocates gain professionally, and also attain a sense of fulfillment and achievement.

LOCATION OF THE CENTRE:-

The Tamil Nadu Mediation and Conciliation Centre, High Court, Madras is prominently located in the High Court building with a section consisting of Director, Deputy Director, Assistant Registrar and Staff.

ACTIVITIES OF THE CENTRE



The following among others shall be the functions of the Centre:

1. To enhance access to Justice by effective implementation of Mediation Programme and to promote the Constitutional goal of Fraternity and ensure peace and harmony in the society.
2. To create awareness and promote mediation among all the stakeholders, namely, the litigants, advocates, referral judges etc and also spread the message among general public.
3. To identify and train mediators to mediate the cases referred by the Court and to give them intensive and high quality Mediation Training and to continue their education through, Refresher and other Courses; to motivate, evaluate them to maintain a Roll of efficient and active Mediators and duly certify them and evolve and implement a code of conduct for the Mediators.
4. To establish, monitor and supervise Mediation Centers throughout Tamil Nadu and provide Mediation services to all concerned and to generate, maintain data.

FACILITIES AVAILABLE AT THE HIGH COURT MEDIATION CENTRE :-



Tamil Nadu Mediation and Conciliation Centre (TNMCC), High Court of Madras has got

- ☐ The right ambience
- ☐ Absolute Sound Proof Rooms
- ☐ Special Lighting & Air-conditioning
- ☐ Facilities for litigants to wait with Television facilities in which orientation movies are displayed
- ☐ Piped music to create a calm atmosphere
- ☐ TNMCC has printed Relevant Materials for 40 Hours Mediation Training to Advocates and Judicial Officers
- ☐ Awareness Materials for Judicial Officers, Advocates and Students
- ☐ Pamphlets for litigants / parties
- ☐ Digital Materials, including 1 hour movie of Model Mediation videos for litigants' orientation and Advocates' awareness
- ☐ Release of Periodical Newsletters
- ☐ TNMCC has got 8 Senior Trainers, who impart 40 Hours Mediation training to Mediators and Referral Judges Programme to Judicial Officers, throughout the Country and 11 newly trained Trainers, who are initially deputed to conduct Awareness Programme to Advocates/Students/Litigants and Refresher Course for Mediators

MEDIATORS:-



The Hon'ble Judges, Judicial Officers, Retired Judges, Advocates of 10 years standing, retired bureaucrats and other professionals are trained as Mediators. The Centre has so far trained 25 Hon'ble Sitting Judges, 436 Judicial Officers and 1317 Advocates in the State of Tamil Nadu and Union Territory of Puducherry.

TRAINING TO HON'BLE JUDGES:-

**40 Hours Mediation Training Programme to the Hon'ble Sitting Judges
of the High Court of Madras**
in two spells viz., (i) from 05.07.2019 to 07.07.2019 (first Spell)and
(ii) from 12.07.2019 to 14.07.2019 (Second Spell)





Under the Chairmanship of Hon'ble Dr.Justice Vineet Kothari, the Centre has imparted 40 Hours Mediation Training Programme to the Hon'ble Sitting Judges of the High Court of Madras. Twenty Five Hon'ble Sitting Judges participated in the Training Programme. After the Training, their Lordships' are also now conducting Mediation Sessions in Tamil Nadu Mediation and Conciliation Centre, High Court of Madras.

A Certificate of "Completion of Training" was also given to all the Hon'ble Judges, Judicial Officers and Advocates. The Hon'ble Mr.Justice A.P.Sahi, Chief Justice of the High Court of Madras handed over the said certificates.





The Tamil Nadu Mediation and Conciliation Centre is one among the five States which have exclusive website. The website for TNMCC was launched on 15.12.2020 by Hon'ble Mr.Justice A.P.Sahi, the then Chief Justice of Madras High Court.



PROCEDURE OF THE CENTRE:-



- a) The Hon'ble Judges/Presiding Officers refer suitable cases to the Centre for Mediation. The cases suitable for referral to mediation / conciliation include civil cases, commercial disputes, property matters, partnership disputes, partition cases, cases involving family business, family disputes including matrimonial and child custody, Company petitions, Testamentary matters, Arbitration cases, Motor Accident Cases, Bank matters, Labour Cases, Insolvency Cases, Negotiable Instruments Act cases, etc., apart from other types of disputes, which are deemed fit by the Hon'ble Court to resolve the issue through mediation.
- b) As soon as the referral order is passed by the Hon'ble Judge, the Registry will prepare a Case Sheet, and furnish the same to the Centre within 3 days of the Court having passed the order of referral, along with a photocopy of the relevant papers.
- c) On receipt of the Case Sheet, the matter is taken up as a Mediation Case and after assigning Mediation File Number, the Centre appoints a Mediator (drawn from the panel on a roster system), to mediate the case. Care is now being taken to see that Mediators are appointed after evaluating their efficacy and suitability.
- d) The case is then listed in the cause-list in respect of the High Court. If the parties do not appear, then written notices are sent to the parties by post and to their counsels, by special messenger, informing them the date and time of the first Mediation session.
- e) Then the case will again appear in the cause-list. When the parties appear on the allotted day, they are provided with an 'Information Sheet on Mediation' so as to enable them to familiarize with the process. They shall sign and acknowledge the same and also provide their contact details. The Mediators then have session with the parties and their counsels.
- f) Subsequent mediation sessions are fixed by the Mediator in consultation with the parties. The number of sessions required may vary depending on the complexity of the case.
- g) However, there is a time limit of 60 days from the date fixed for first appearance of parties before the mediation for disposal of matters referred for mediation and, in exceptional situations, with the consent of the parties, the time limit can be extended by 30 days. This time limit may be extended beyond 90 days, only with the permission of the Referral Judge, provided both parties agree to it.
- h) On conclusion of the mediation, if any settlement is reached, the parties have to sign a settlement agreement, which is sent to the Court which referred the matter along with the Report of the Mediator. The Court then passes an order enforcing the agreement. If no agreement is reached in the Mediation, a report of the same will be placed before the Hon'ble Judge handling the relevant portfolio, for passing further suitable orders.
- i) If any party is not willing for mediation, the case will be sent back to the Court forthwith.

j) In the High Court Mediation Centre, mediation sessions are conducted throughout the day in the Court-Annexed 10 Mediation Halls.

INSTRUCTIONS TO THE LITIGANTS TO ACCESS MEDIATION :



- ☐ Mediation Centres are functioning in our Courts.
- ☐ When you appear in the Court either in person or through counsel, you can make a request to the Court to send your case to the Mediation Centre, on the next hearing date or anytime thereafter.
- ☐ In the Mediation Centre, you can appear, participate and discuss your case/problems with the other side directly and your counsels will also participate and help you in the process.
- ☐ Trained Mediators will help you to negotiate and hold talks.
- ☐ All the discussions in Mediation will be kept confidential and it is a without prejudice process and you can still proceed to argue your case before Court, if mediation does not succeed.
- ☐ In Mediation, the cases can be finally settled through amicable resolution, with no appeal whatsoever, within short time and without any additional cost.
- ☐ In Mediation, you are in control of your case and you can agree to solutions which would suit you and agreeable to you.

HOW DO PARTIES REACH THE HIGH COURT MEDIATION CENTRE :



- ☐ High Court Mediation Centre is located in the Ground Floor of the Main High Court Buildings nearer to High Court North gate.
- ☐ Parties should carry with them a valid Photo Identity Card and enter the High Court Premises through the Western Gate – Fire Station Gate. Four wheeler/Two wheeler parking facility is available inside the campus.
- ☐ They will first be issued with a pass by the Tamil Nadu Police at the Counter to enter the High Court premises only upon showing a valid Identity Card.
- ☐ Then after informing the Serial Number of their Case, which appeared in the Mediation Cause List, they can obtain pass from the CISF counter inside the premises and enter into the High Court through the entrance meant for litigant and then reach the Mediation Centre.
- ☐ On reaching the Mediation Centre, they shall first report to the Reception at the Centre, where they will be provided with all necessary assistance to proceed in the case.

CONTACT DETAILS

Tamil Nadu Mediation and Conciliation Centre,
High Court Buildings,
High Court, Madras,
Chennai – 600 104.
Website : tnmcc.tn.gov.in.
Email : tnmacc@tn.gov.in
Phone : 044 - 2530 1271